

STATE OF NEW YORK

1172--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. PAULIN, SEAWRIGHT, GLICK, GONZALEZ-ROJAS, SIMON, LEVENBERG, SHRESTHA, SHIMSKY, SIMONE, EPSTEIN, BURDICK, TAPIA, BORES, REYES, CLARK, ROSENTHAL, RAGA, STERN, SAYEGH, FORREST, McDONALD, STIRPE, McMAHON, WEPRIN, LAVINE, KELLES, CRUZ, LASHER, GALLAGHER -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommended to said committee

AN ACT to amend the public health law, the education law and the insurance law, in relation to the dispensing of abortion medication

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public health law is amended by adding a new section 267-c to read as follows:

§ 267-c. Abortion medication. The commissioner is authorized to establish a non-patient specific order, consistent with sections sixty-eight hundred one and sixty-nine hundred two of the education law, for dispensing abortion medication as defined in section sixty-eight hundred two of the education law.

§ 2. Section 6527 of the education law is amended by adding a new subdivision 12 to read as follows:

12. A licensed physician may prescribe and order a non-patient specific order to a registered professional nurse or pharmacist licensed and located in this state, pursuant to regulations promulgated by the commissioner, and consistent with section sixty-eight hundred one of this title, for dispensing abortion medication as defined in section sixty-eight hundred two of this title.

§ 3. Section 6802 of the education law is amended by adding a new subdivision 31 to read as follows:

31. "Abortion medication" means any medication approved by the federal Food and Drug Administration for the purposes of inducing abortion or expelling a miscarriage.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD02820-02-5

§ 4. Section 6801 of the education law is amended by adding a new subdivision 10 to read as follows:

10. (a) A licensed pharmacist may execute a non-patient specific order for the dispensing of abortion medication prescribed or ordered by the commissioner of health, a physician licensed in this state, or a nurse practitioner certified in this state pursuant to rules and regulations promulgated by the commissioner.

(b) Prior to dispensing abortion medication, the pharmacist shall:

(i) provide a risk assessment questionnaire, developed by the commissioner of health in consultation with the commissioner, to be reviewed by the pharmacist to identify any known risk factors; and

(ii) provide a fact sheet, developed by the commissioner of health that includes but is not limited to, the clinical considerations and recommendations for use of abortion medication, the appropriate method for using abortion medication, information on the importance of follow-up health care, and health care referral information.

(c) No pharmacist shall dispense abortion medication under this subdivision without receiving training satisfactory to the commissioner.

(d) Nothing in this subdivision shall prevent a pharmacist from refusing to dispense a non-patient specific order of abortion medication pursuant to this subdivision if, in their professional judgment, potential adverse effects, interactions or other therapeutic complications could endanger the health of the patient.

§ 5. Section 6902 of the education law is amended by adding a new subdivision 4 to read as follows:

4. (a) A registered professional nurse may execute a non-patient specific order for the dispensing of abortion medication, as defined in section sixty-eight hundred two of this title, prescribed or ordered by the commissioner of health, a physician licensed in this state, or a nurse practitioner certified in this state pursuant to rules and regulations promulgated by the commissioner.

(b) Prior to dispensing abortion medication, a registered professional nurse shall:

(i) provide a risk assessment questionnaire, developed by the commissioner of health in consultation with the commissioner, to be reviewed by the registered professional nurse to identify any known risk factors; and

(ii) provide a fact sheet, developed by the commissioner of health that includes but is not limited to, the clinical considerations and recommendations for use of abortion medication, the appropriate method for using abortion medication, information on the importance of follow-up health care, and health care referral information.

(c) No registered professional nurse shall dispense abortion medication under this subdivision without receiving training satisfactory to the commissioner.

(d) Nothing in this subdivision shall prevent a registered professional nurse from refusing to dispense a non-patient specific order of abortion medication pursuant to this subdivision if, in their professional judgment, potential adverse effects, interactions or other therapeutic complications could endanger the health of the patient.

§ 6. Section 6909 of the education law is amended by adding a new subdivision 12 to read as follows:

12. A certified nurse practitioner may prescribe and order a non-patient specific order to a registered professional nurse or pharmacist licensed and located in this state, pursuant to regulations promulgated by the commissioner, and consistent with sections sixty-eight hundred

1 one and sixty-nine hundred two of this title, for dispensing abortion
2 medication as defined in section sixty-eight hundred two of this title.

3 § 7. Section 3216 of the insurance law is amended by adding a new
4 subsection (n) to read as follows:

5 (n) Any policy under this article that covers contraception when
6 provided pursuant to a prescription shall cover abortion medication as
7 defined in subdivision thirty-one of section sixty-eight hundred two of
8 the education law, when provided pursuant to an ordinary prescription or
9 order under section sixty-eight hundred one or sixty-nine hundred two of
10 the education law and when lawfully provided other than through a
11 prescription or order.

12 § 8. Section 3221 of the insurance law is amended by adding a new
13 subsection (v) to read as follows:

14 (v) Any policy under this article that covers contraception when
15 provided pursuant to a prescription, shall cover abortion medication as
16 defined in subdivision thirty-one of section sixty-eight hundred two of
17 the education law, when provided pursuant to an ordinary prescription or
18 order under section sixty-eight hundred one or sixty-nine hundred two of
19 the education law and when lawfully provided other than through a
20 prescription or order.

21 § 9. Section 4303 of the insurance law is amended by adding a new
22 subsection (xx) to read as follows:

23 (xx) Any policy under this article that covers contraception when
24 provided pursuant to a prescription, shall cover abortion medication as
25 defined in subdivision thirty-one of section sixty-eight hundred two of
26 the education law, when provided pursuant to an ordinary prescription or
27 order under section sixty-eight hundred one or sixty-nine hundred two of
28 the education law and when lawfully provided other than through a
29 prescription or order.

30 § 10. This act shall take effect eighteen months after it shall have
31 become a law; provided, however, that sections seven, eight and nine of
32 this act shall apply to policies and contracts issued, renewed, modi-
33 fied, altered or amended on or after such effective date. Effective
34 immediately, the addition, amendment and/or repeal of any rule or regu-
35 lation necessary for the implementation of this act on its effective
36 date are authorized to be made and completed on or before such effective
37 date.